

1000^{ll} lande *per annum* boughte of the late Erle of Kente. The title was thus opened. Edmonde, erle of Kente in 4 E. 4¹ had issue Anthonye *par un venter* & George *par auter venter*.¹ Anthony died without issue; George entailed the land and the honours in special tail, and thus the now Earl of Kent had conveyed to him the land and the honours as heir in special tail. Rotheram and Garter say that true it is that Edmond had issue Anthonie, but Anthony had issue Katherine, who intermarried with our ancestor, Sir Thomas Rotheram; and Edmond, the father of Anthony, entailed the land and the baronies, but not the Earldom, to his heirs in special tail, and so Rotheram is heir in special tail. The issue [in the case] is, did Anthony die without issue or not. Of the whole matter there are three parts: 1, of the title to the arms or coats; 2, of the right to the baronies, which have continued in the Earls of Kent from 4 Edward IV. without question; 3, if Anthony had issue Katherine or not. As to the proof of the falsehood and corruption of Garter, a great offence in him, the Lord Keeper and the Lords Chief Justices doubted if it could properly be tried in this Court, and they judged that it could not. As to the title to arms, it should properly be decided by the Lord Marshall and the Lord Constable of England, and titles of honour and dignity, such as baronies and the like, are to be decided by the Queen herself, who is the head and fountain and disposer of all royalties, honours and dignities; and so it was decided between the Earl of Arundell and the Earl of Devonshire, 37 Henry VI.

Statute of 13 Richard II.

Lord Scroope and Gravener [*sic*], appeal to the King.

And it was so sentenced by the [majority of the] voices, but the Court was divided; and it was ruled by the Judges, to whom the Lords agreed [to refer], that it should not be dismissed; as to the issue, did Anthony have issue Katherine or not, it was referred to the common law, being a matter triable by the country; and after the trial of this, the

¹ Edmund, 4th Lord Grey de Ruthyn, created Earl of Kent by Edward IV.

1598-7
Feb. 4

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falsehood, corruption, and malicious offence of Garter will be tried in this Court; for by many the offence was [deemed] great and heinous, and more worthy than many others to be sentenced in this Court. By the Earl of Essex: There cannot be a greater offence; for as God has reserved to Himself the authority to give virtue, so He has given to His vicar on earth, our Queen, the reward and remuneration of virtue, which are honours, baronies, and titles of dignity; and therefore to deceive her as to these rewards is a grievous offence and worthy of great punishment.

1598-7
Feb. 9

In Camera Stellata, coram Consilio ibidem, Mercurij, 9^o Februar. An^o Doⁿⁱ 1596, Elizab. 39, termino Hillarij.¹

Causes dismissed for non-prosecution

Divers causes of perjury and forgery, appointed to be heard, were dismissed for non-prosecution, as well on the part of plaintiffs as of defendants, with costs, and fines to the Queen by the sentence of the Court.

1598-7
Feb. 11

In Camera Stellata, coram consilio ibidem, die Veneris, 11^o Februar. Elizab. 39, ter^{no} Hillarij.²

GRIFFITHS
and others,
defendants
—
Riot and
misdemeanour

Sentence

One Griffiths and his servants were defendants for a riot, in this manner: the servants of the said Griffith, who was a Justice of the Peace, did grievously beat a man, and of this they acquainted their master and mistress, who assented to it. By the Judges: This case is not triable in this Court, but by an action at common law. But as to the misdemeanour of Griffiths, in allowing a battery on the part of his servants, he being a Justice of the Peace, and in offering a *supersedeas* or bond to another Justice of the Peace for their discharge, and in soliciting him for the non-certifying of their recognizance, for these misdemeanours in him as a Justice of the Peace he was sentenced, by the whole Court, to be deposed from the Commission of

¹ Nine Councillors were present.

² Nine Councillors were present.

the Peace. The procurement of, and assent to, the battery were not proved in him, otherwise the Court would have fined him for it.

Rowlande Hille, plaintiff, against ¹ Corbette for riot in this manner: by commanding his servants to challenge Hille and terrify him in his house, being [Corbette's] tenant; and it had no effect; but for this he [Corbette] was fined £40, and his servants £100 each. Sentence *Quicquid est extra causam est in persona*, and so *iudicium est suspiciosum et temerarium*.

HILL
v.
CORBETTE
Riot
Sentence

In the Chancery, on the last day of term, one was committed to the Fleet for buying a statute and a bond and suing thereon in the name of another, the which he confessed.

In the
Chancery

And a fine and recovery were stayed *quia l'enfante en ventre sa mere*. Willoughbye and Willoughbye.

In Camera Stellata, coram consilio ibidem, Die veneris 15^o Aprilis, An^o Doⁿⁱ 1597, Elizab. 39, termino pasche.²

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1597
April 15

In the first cause of hearing the Attorney was plaintiff, and because process was not served but five days before, it was ordered that it should come in course the next day as the Queen's Attorney was a party, otherwise not.

ATT.-GEN.,
Pl.

Aldworthe, plaintiff, Smallman and others, defendants, for riot and practice of conveying³ an idiot. One was found an idiot in the Court of Wards on the surmise of Smallman, and was committed to his ward, and then he traversed the office and was found very simple and foolish but not an idiot from his birth, and it was so decreed in the Court of Wards; and he [the un-named idiot] was removed from Smallman, his stepfather, to Aldworthe, his uncle, and Smallman was ordered to account for £700 arrears, which

ALDWORTE
v.
SMALLMAN
and others,
Riot, &c.

¹ Blank in MS.

² Seven Councillors were present.

³ Carrying off or stealing. 'Convey,

the wise it call: steale? foh: a fico
for the phrase.' *Merry Wives of
Windsor*, act i. sc. 3.

1597
April 15

*Insidiatores
via: um*
Sentence

he has not done. The supposed idiot, in the wardship of Aldrige [*sic*], lived in the country, and for the recovery from his infirmities, had a surgeon and his man there, with whom Smallman confederated, for £40 to the one and £10 to the other, to convey the idiot. They came with four others, with 'swordes, rapyers, & daggers, & 3 pistolles,' and seized the idiot forcibly. And for this riot and practice Smallman was fined £140, and each of the other four £40, and imprisonment according to the course of this Court.

ALDRIGE
and GOOGE
v.
WOOLRIGE
and others

Sentence

Aldrige and Googe, plaintiffs, Woolrige, Wheatecrofte and Partrige, defendants. Woolrige, by warrant of attorney, sued on a bond against Aldrige, who was bound for the debt but [was] not the principal [debtor], and by a supposed warrant of attorney, he [Woolrige] retained one Wheatecrofte, an attorney of the Common Bench, and paid both their fees for the plaintiff and the defendant also; which [Wheatecrofte] commenced a suit in the King's Bench, and took bail, and entered a *non sum informatus* in the name of one Partrige, who is ignorant of this and denies that he was ever privy to it. And he [Wheatecrofte] had judgment and execution in one term against Aldrige, without any notice or process served on him, whereas the course in the Bench is that a man shall be arrested on a *latitat* and shall have bail or shall prefer a bill in Middlesex. For this offence Woolrige was fined £100, and Wheatecrofte £300, and to be 'hurle over the barre at Westminster,' and never to be an attorney, nor to have any office in the law, to be expelled from 'Furnifolles Inne' for ever, and both of them to wear papers at Westminster and at the Assizes where they dwell.

Order of the
Court

Ruled that it is the custom of this Court that if there are two defendants for one offence, and the one is served with a subpoena *ad audiendum iudicium*, it is good for the other.

A warrant of attorney is an authority *et moritur cum persona*.